

BREYER, J., dissenting

ment claims involving medical care to claims about conditions of confinement”). Indeed, the Court made this very point in a *Bivens* case alleging that prison wardens were deliberately indifferent to an inmate’s safety. See *Farmer*, *supra*, at 830, 834.

I recognize that the Court finds a significant difference in the fact that the confinement here arose soon after a national-security emergency, namely, the September 11 attacks. The short answer to this argument, in respect to at least some of the claimed harms, is that some plaintiffs continued to suffer those harms up to eight months after the September 11 attacks took place and after the defendants knew the plaintiffs had no connection to terrorism. See App. to Pet. for Cert. in No. 15–1359, p. 280a. But because I believe the Court’s argument here is its strongest, I will consider it at greater length below. See Part II–C, *infra*.

Because the context here is not new, I would allow the plaintiffs’ constitutional claims to proceed. The plaintiffs have adequately alleged that the defendants were personally involved in imposing the conditions of confinement and did so with knowledge that the plaintiffs bore no ties to terrorism, thus satisfying *Iqbal*’s pleading standard. See 556 U. S., at 679 (claims must be “plausible”); see also *id.*, at 699–700 (BREYER, J., dissenting). And because it is clearly established that it is unconstitutional to subject detainees to punitive conditions of confinement and to target them based solely on their race, religion, or national origin, the defendants are not entitled to qualified immunity on the constitutional claims. See *Bell v. Wolfish*, 441 U. S. 520, 535–539, and n. 20 (1979); *Davis*, 442 U. S., at 236 (“It is equally clear . . . that the Fifth Amendment confers on petitioner a constitutional right to be free from illegal discrimination”). (Similarly, I would affirm the judgment of the Court of Appeals with respect to the plaintiffs’ statutory claim, namely, that the defendants conspired to deprive the plaintiffs of equal protection of the laws in violation of 42 U. S. C. § 1985(3).